

Chief Justice's Court

Case :- WRIT - C No. - 43230 of 2016

Petitioner :- Ram Sewak

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ajendra Kumar

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Dilip B. Bhosale,Chief Justice

Hon'ble Yashwant Varma,J.

Heard Sri Ajendra Kumar, learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the respondent no.3.

Having regard to the prayers made in the writ petition and considering the controversy involved, we are satisfied that this writ petition can be conveniently disposed of by the following order:

The third respondent shall decide the petitioner's application dated 10th July, 2016, treating it as a dispute under Clause 6.5 of the Electricity Supply Code, 2005, as expeditiously as possible and preferably within a period of four weeks from the date of receipt of this order. This would be subject to the petitioner complying with such conditions and completion of such formalities as may be specified and mandated by law. Petitioner is directed to produce a copy of this order before the competent authority within ten days from today. Till the petitioner complying with the conditions, as aforementioned, and the application is decided, no coercive action be taken against the petitioner. All contentions on merits are kept open.

Order Date :- 14.9.2016

VMA

(Yashwant Varma, J) (Dilip B Bhosale, CJ)